

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA Civil
Action No. SYN-EDVA-25-CV-0412

BLUE CEDAR COMPLIANCE, INC.'S ANSWER

Blue Cedar admits Benton worked as a senior compliance audit manager and was terminated in a March 2025 reduction in force. It admits receipt of an EEOC notice on February 10 and denies that retaliation affected the selection.

Blue Cedar admits the January 17 email complained about assignment practices but denies that its allocation method discriminated. It admits Solis opened an employee-relations file. It lacks knowledge as to Benton's subjective belief except as stated in her writings.

Blue Cedar denies that Pike considered protected activity, denies criteria were manipulated, and denies Benton was treated less favorably than similarly situated employees.

Responses concerning the RIF

Blue Cedar admits Finch proposed \$612,000 in annualized savings and that the workbook opened on February 14. It admits the written protocol listed five weighted criteria and required manual changes to be recorded.

Blue Cedar admits Benton's imported score differed from the final score. It states imported data required manager validation and that corrections were ordinary calibration rather than special treatment.

Blue Cedar admits Wynn, Ibarra, and Keene were retained. It denies they were comparable in all material respects, citing different client assignments, travel commitments, credentials, and automation responsibilities.

Blue Cedar admits the termination occurred March 24. It denies the six-week interval establishes why Benton was selected.

Responses concerning knowledge

Blue Cedar admits Solis routed the EEOC packet to Pike and that the routing system recorded an open event on February 11. It denies the system proves Pike read the charge allegations.

Blue Cedar admits Pike attended a meeting with Solis on February 12. It states the meeting's scheduled purpose was litigation preservation and staffing confidentiality, not the merits of Benton's complaint.

Blue Cedar admits a March 4 calibration note contains Pike's question about whether a score change was documented. It denies the note connects the question to Benton's opposition or EEOC activity.

Blue Cedar denies Voss or Solis recommended Benton's termination to punish complaints. It states Pike approved a financially justified selection after reviewing the calibrated matrix.

Responses concerning stated reasons

Blue Cedar admits the termination letter used the terms budget reduction and role redundancy. It denies that later discussion of performance inputs, travel availability, or client continuity introduced different reasons; those were components of the scoring process, it says.

Blue Cedar admits its EEOC position statement emphasized salary savings. It denies concealing other criteria and states the position statement attached the written RIF protocol.

Blue Cedar admits Benton's formal annual reviews were positive. It states annual reviews served a different purpose from comparative RIF scoring and did not guarantee retention.

Blue Cedar denies that any departure from a mechanical lowest-score method was improper because the protocol expressly permitted recorded business-continuity exceptions.

Affirmative defenses

First, Blue Cedar alleges Benton was selected for legitimate nonretaliatory reasons within an actual reduction in force.

Second, Blue Cedar alleges it would have made the same selection based on calibrated role overlap, salary savings, availability, and continuity considerations. Benton disputes both the factual premise and the legal effect of this defense.

Third, Blue Cedar alleges Benton failed to mitigate after termination. Benton denies any failure and states mitigation records will be supplied separately from the liability record.

Fourth, Blue Cedar preserves statutory limits, offsets, and objections to relief not proved.

Fifth, Blue Cedar preserves objections under Rules 26 and 37 to information not timely disclosed or otherwise made known during discovery, subject to substantial-justification and harmlessness arguments on a concrete record.

Answer to requested relief

Blue Cedar denies Benton is entitled to declaratory, monetary, or equitable relief. It denies reinstatement is feasible because the pre-RIF management configuration no longer exists. Benton disputes that characterization and alleges equivalent management work continued.

Blue Cedar demands judgment in its favor, taxable costs as permitted, and other lawful relief. It does not demand a jury on issues not triable by jury but joins Benton's demand as to triable liability and damages questions.

Blue Cedar states that the answer is based on the investigation completed by July 3, 2025. It reserves amendment only as the governing rules and scheduling order allow; this reservation does not excuse later disclosure duties.

Admissions useful to narrow the dispute

For clarity, Blue Cedar admits these points without admitting retaliation: Benton sent the January 17 email; she filed the February 3 charge; the company received notice February 10; Pike was an addressee on the routed packet; the RIF workbook opened February 14; Pike approved the selection; Benton was terminated March 24; and Wynn, Ibarra, and Keene were retained.

Blue Cedar disputes what Pike learned, why Benton's score changed, whether retained employees were similarly situated, whether its explanations materially shifted, and whether retaliation was a but-for cause.

Those disputes narrow the pleaded liability questions. Each party retains its burden to cite admissible evidence, authenticate contested materials, and comply with the disclosure schedule.